



Notification Waiver Determination

The Procter & Gamble Company – Thorne

Acquisition	The Procter & Gamble Company (P&G) applied for a notification waiver in respect of its proposed acquisition of 100% of the issued and outstanding units of Healthspan Topco, LLC and its subsidiaries, (trading as Thorne), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	5 September 2026

Parties to the Acquisition	The acquirer, P&G, is a global manufacturer of consumer goods, including fabric and household care, grooming, health care, baby, feminine, and family care products. Its headquarters are located in Cincinnati, USA and its shares are listed on the New York Stock Exchange. P&G is structured into five global business units: (i) Beauty, (ii) Grooming, (iii) Health Care, (iv) Fabric & Home Care, and (v) Baby, Feminine & Family Care. In Australia, P&G Health Care supplies vitamins, minerals, and supplements through its VOOST brand. The target, Thorne, is a US-based wellness company that offers high-quality supplements and personalised health solutions backed by healthcare practitioners. Thorne's nutritional supplements are manufactured in the US, primarily at its manufacturing campus in Summerville, South Carolina. Thorne's products are sold directly to consumers through its website (Thorne.com) and select online marketplaces such as Amazon, as well as through healthcare practitioners and athletic performance partners. Its business outside the US is primarily conducted through third-party distributors and resellers. Thorne has no direct physical presence or subsidiary incorporated in Australia.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: there is small horizontal overlap between P&G and Thorne in the supply of vitamins and other dietary supplements in Australia

	b. the parties' combined share of supply of vitamins and other dietary supplements in Australia is estimated to be low and the increment arising from the Acquisition is expected to be small c. there are alternative providers of vitamins and other dietary supplements available in Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act